

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB563 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Clay Staires

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 563

By: Haste of the Senate

and

Staires of the House

FLOOR SUBSTITUTE

An Act relating to the county planning commission; amending 19 O.S. 2021, Section 868.2, which relates to the personnel of the county planning commission; establishing that the chair of the board of county commissioners or their designee shall be a member of the county planning commission; providing process for appointing remaining members; establishing terms of two years; amending 19 O.S. 2021, Section 868.3, which relates to personnel and procedure of the county board of adjustment; requiring the county board of adjustment to be composed of three, five, or seven appointed resident property owners of the county; providing process for the appointment of members; establishing terms of members; permitting the board of county commissioners to retain private legal counsel to represent and advise the county board of adjustment; amending 19 O.S. 2021, Section 868.5, which relates to the procedure of the county planning commission; requiring posting of hearing notice on county's primary official social media platform; clarifying certain actions adopted or enacted pursuant to certain provisions shall remain in full force until amended, revised, or replaced; providing for codification; and declaring an emergency.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 19 O.S. 2021, Section 868.2, is
3 amended to read as follows:

4 Section 868.2. The county planning commission shall be composed
5 of seven (7) members to be appointed by the board of county
6 commissioners. One member shall be ~~a member~~ the chair of the board
7 of county commissioners or their designee and the remaining six
8 members shall be ~~residents of the unincorporated areas of the county~~
9 appointed by the board of county commissioners, with each county
10 commissioner nominating two (2) members. Each such nominee shall
11 reside within the district represented by the county commissioner
12 making the nomination. The term of the chair of the county
13 commissioner member or their designee shall be coextensive with ~~his~~
14 their term of official office in that position, and all other
15 members shall be appointed for terms of ~~six (6)~~ two (2) years,
16 except that such terms shall be made overlapping and the respective
17 terms of those first appointed may be less than ~~six (6)~~ two (2)
18 years. All members shall serve as such without compensation.
19 Members may be removed by the board of county commissioners for
20 cause after a public hearing held for that purpose and vacancies
21 shall be filled by additional appointments.

22 SECTION 2. AMENDATORY 19 O.S. 2021, Section 868.3, is
23 amended to read as follows:

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1 Section 868.3. A. The county board of adjustment shall be
2 composed of three (3), five (5), or seven (7) resident property
3 owners of the county to be appointed by the board of county
4 commissioners. ~~At least one member shall be a resident of the~~
5 ~~county seat of such county and at least one member shall be duly~~
6 ~~licensed as an attorney in the State of Oklahoma.~~ Members shall be
7 nominated by the county commissioners in as nearly equal number as
8 practicable, and when the total number of authorized positions
9 cannot be divided equally among the three county commissioners, the
10 remaining nomination or nominations shall be allocated by the board
11 of county commissioners.

12 B. The term of each member shall be ~~three (3)~~ two (2) years
13 except that the terms shall be overlapping and the ~~membership of the~~
14 ~~board first appointed shall be for terms of one (1), two (2) and~~
15 ~~three (3) years, respectively~~ respective terms of those first
16 appointed may be less than two (2) years. The board of county
17 commissioners is hereby authorized to fill vacancies which may occur
18 in the board and to appoint a substitute or substitutes to serve in
19 a particular case in which a member or members shall certify ~~his~~
20 their disqualification. Members may be removed by the board of
21 county commissioners for cause after a public hearing held for that
22 purpose, and vacancies shall be filled by additional appointments.
23 All members of the county board of adjustment shall serve as such
24 without compensation.

1 C. The board of county commissioners may retain private legal
2 counsel to represent and advise the county board of adjustment in
3 the performance of its official duties.

4 D. The county board of adjustment shall elect its own chairman
5 and shall adopt rules of procedure consistent with the provisions of
6 the zoning regulations and the provisions of this act. The
7 chairman, or in his absence the acting chairman, may administer
8 oaths and compel the attendance of witnesses. All hearings of the
9 county board of adjustment shall be open to the public, and minutes
10 shall be kept of all proceedings and official actions, which minutes
11 shall be filed in the office of the board and shall be a public
12 record. The board of adjustment shall fix a reasonable time for the
13 hearing of any appeal and every appeal shall be heard within sixty
14 (60) days from the date of filing.

15 E. Notice of hearings before the county board of adjustment
16 shall be given by at least one (1) publication in a newspaper of
17 general circulation in the county and by mail to the record owners
18 of lands contiguous to the affected area at least fifteen (15) days
19 prior to the date of such hearing.

20 SECTION 3. AMENDATORY 19 O.S. 2021, Section 868.5, is
21 amended to read as follows:

22 Section 868.5. The county planning commission shall hold at
23 least one regular meeting each month. The commission shall elect a
24 chair who shall serve for one (1) year with eligibility for

reelection. The commission shall adopt rules of procedure for the transaction of its business, set fees for building permits and time periods for filing petitions and fees for amendments to zoning regulations which shall be approved and adopted by the board of county commissioners. The county planning commission shall keep a public record of its resolutions, transactions, findings and recommendations.

Before holding any hearing hereinafter provided for in this act, the county planning commission shall give notice stating the nature of the hearing and the time and place where it shall be held. ~~Such notice shall be given at least once each week for three (3) successive weeks prior to the date of such hearing in a newspaper of general circulation in the county~~ Notice of such hearing shall be posted on the county's primary official social media platform at least once each week for three (3) successive weeks prior to the date of the hearing and shall be published one (1) time in a newspaper of general circulation in the county at least fifteen (15) days prior to the date of the hearing.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 868.23 of Title 19, unless there is created a duplication in numbering, reads as follows:

On and after the date a county becomes subject to Sections 868.1 et seq. of Title 19 of the Oklahoma Statutes, all comprehensive plans, master plans, zoning regulations, floodplain regulations,

1 subdivision regulations, resolutions, ordinances, codes, and all
2 amendments, supplements, and modifications thereto, previously
3 adopted or enacted pursuant to any other provision of Section 863.1
4 through Section 869.7 of Title 19 of the Oklahoma Statutes, and all
5 actions taken thereunder, are hereby validated, ratified, and
6 continued in full force and effect as if adopted under the authority
7 of Sections 868.1 et seq. of Title 19 of the Oklahoma Statutes,
8 until amended, revised, or replaced by appropriate official action
9 taken in accordance with such sections.

10 SECTION 5. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 60-2-17369 MJ 04/09/26
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